

Prevention of Sexual Harassment & Anti Bullying Policy

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CONFIDENTIAL

1. Prevention of Sexual Harassment

1.1. Introduction

Our success is based on our people. We treat each other with respect and dignity and expect everyone to promote the company values and culture. The company provides opportunities for development and advancement of employees. We do not tolerate any form of harassment or discrimination effecting the mental, emotional, and physical health of all employees.

This 'Prevention of Sexual Harassment Policy for the Company' outlines how ApMoSys (hereinafter referred to as the "Company") intends to provide protection against sexual harassment of female employees at workplace and the prevention and redressal of complaints of sexual harassment and matters related to it.

1.2. The Law

This policy has been framed in accordance with the provisions of "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" and rules framed thereunder (hereinafter the "Act"). Accordingly, while the policy covers all the key aspects of the Act, for any further clarification reference shall always be made to the Act and the provisions of the Act shall prevail.

1.3. Scope

This Policy shall apply to all Employees (as defined hereinafter) of the Company at the Workplace of the Company.

This Policy shall apply to all allegations of Sexual Harassment (as defined hereinafter) made by an Aggrieved Woman (as defined hereinafter), against an Employee, occurring or having occurred within or outside the premises of the Company, including allegations made by Employees on overseas programs if any and trainings and/or during an Employee's employment with the Company.

This Policy shall apply in respect of any act of Sexual Harassment which may have been committed in any place visited by any Employee, travel to such place having been occasioned by or arising out of or during employment with the Company. The Policy shall also apply to all allegations of Sexual Harassment made by a third party against an Employee or vice versa if such Sexual Harassment has occurred within the Company's premises.

This Policy is not intended to impair or limit the right of any Employee seeking a remedy available under any applicable law in force. Proceedings under this Policy shall continue notwithstanding any proceedings initiated by a Complainant (as defined hereinafter) against an alleged perpetrator under any law in force.

1.4. Definitions

1.4.1. Aggrieved Woman – means, in relation to the Company's Workplace, a woman (including a woman Employee) who alleges to have experienced or been subjected to any act of Sexual Harassment by the Respondent at the Company's Workplace.

1.4.2. Complaint – means a Complaint of Sexual Harassment at the Company's Workplace lodged with the Internal Committee or the Local Complaints Committee of the concerned district, as the case maybe.

1.4.3. Complainant – means an Aggrieved woman who lodges a Complaint, as per the provisions of the Act, with the Internal Committee or the Local Complaints Committee of the concerned district, as the case maybe.

1.4.4. Employee(s) – means a person employed at the Workplace for any work on regular, temporary, ad hoc or daily wage basis, either directly or through an agent, including a contractor, with or without the knowledge of the Company, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied and includes a co-worker, a contract worker, probationer, trainee, apprentice or called by any other such name.

1.4.5. ICC – means the Internal Complaints Committee constituted by the Company in accordance with the provisions of Section 4 of the Act for redressal of a Complaint.

1.4.6. Respondent – means a person against whom a Complaint is made by an Aggrieved Woman.

1.4.7. Sexual Harassment – shall have the meaning as described in Clause 1.5 herein.

1.4.8. Workplace - shall have the meaning ascribed to it under the Act as applicable to the Company.

1.5. What is Sexual Harassment

1.5.1. Sexual Harassment means and includes:

1.5.1.1. Any one or more of the following unwelcome acts or behaviour (whether directly or by implication) namely:

- 1.5.1.1.1** Physical Contact & advances; or
- 1.5.1.1.2** A demand or request for sexual favours; or
- 1.5.1.1.3** Making sexually coloured remarks; or
- 1.5.1.1.4** Showing pornography; or
- 1.5.1.1.5** Any other unwelcome physical, verbal, or non-verbal conduct of sexual nature.

1.5.2. The following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behaviour of sexual harassment may amount to sexual harassment:

- 1.5.2.1** Implied or explicit promise of preferential treatment in her employment; or
- 1.5.2.2** Implied or explicit threat of detrimental treatment in her employment; or
- 1.5.2.3** Implied or explicit threat about her present or future employment status; or
- 1.5.2.4** Interference with her work or creating an intimidating or offensive or hostile work environment for her; or
- 1.5.2.5** Humiliating treatment likely to affect her health or safety.

1.6. Sexual Harassment in the Workplace

1.6.1. Sexual harassment in the Workplace is generally of two distinct types:

1.6.1.1. Quid Pro Quo (Conditional) Sexual Harassment: “Quid pro quo” sexual harassment means seeking sexual favours or advances in exchange for preferential treatment. This kind of sexual harassment occurs when consent to sexually explicit behaviour or speech is made a condition for

employment or preferential treatment in employment. This kind of sexual harassment also occurs when refusal to comply with a “request of sexual favour” is met with retaliatory action such as dismissal, demotion, difficult working conditions etc.

1.6.1.2. Hostile Working Environment Sexual Harassment: Hostile working environment sexual harassment occurs where employees in a workplace are subject to a pattern of exposure to unwanted and unwelcome sexual behaviour from the management or co-workers. This kind of behaviour makes the work environment of an employee hostile. This is because such conduct creates an intimidating, offensive, oppressive, abusive, or humiliating work environment and which is severe and pervasive enough to interfere with her ability to work and perform.

1.7. Explaining the Word ‘Unwelcome’

1.7.1. ‘Unwelcome’ is the key in defining what conduct constitutes Sexual Harassment. The conduct in question must have been unwelcome. In other words, the Aggrieved Woman must have found the behaviour in question offensive, repulsive or repugnant. It is the impact and effect the behaviour or conduct has on the recipient that will define the behaviour as Sexual Harassment.

1.7.2. Annexure ‘B’ of this Policy provides a list of examples of behaviour that may be found to constitute sexual harassment in the Workplace. The said Annexure ‘B’ contains only an indicative list of the possible acts that may be considered as Sexual Harassment and should not be construed as exhaustive in nature.

1.8. Constitution of the Internal Committee

1.8.1. To prevent instances of sexual harassment and to receive and effectively deal with Complaints pertaining to the same, an "Internal Committee" is constituted at locations where the Company has 10 or more employees. The details of the Committee will be notified to all covered persons periodically. The Internal Committee comprise the following members:

1.8.1.1. Presiding Officer: A senior level woman representative associated with the Organisation or at the workplace.

1.8.1.2. At least two (2) members from amongst the Employees of the Company who are preferably committed to the cause of women or who have experience, in the field of social work or having legal knowledge; and

1.8.1.3. One (1) member from any non-government organization or associations committed to the cause of women, or a person familiar with issues relating to Sexual Harassment.

1.8.1.4. At least one-half of the total members of the Internal Committee shall be women.

1.8.2. The members of the Internal Committee shall be nominated by the Head of the Human Resources (HR) Department of the Company. And any changes will be duly notified to all covered persons and the board members.

1.8.3. The Internal Committee is empowered to deal with Complaints of any alleged incident of Sexual Harassment at the Company’s Workplace, for which the Internal Committee has been constituted.

1.8.4. The members of the Internal Committee including the Presiding Officer shall hold office for not more than three (3) years from the date of their nomination as member, after which new persons shall be nominated.

1.8.5. The Committee is responsible for:

- 1.8.5.1.** Receiving Complaints of sexual harassment at the workplace
- 1.8.5.2.** Initiating and conducting inquiry as per the established procedure
- 1.8.5.3.** Submitting findings and recommendations of inquiries
- 1.8.5.4.** Coordinating with the employer in implementing appropriate action
- 1.8.5.5.** Maintaining strict confidentiality throughout the process as per established guidelines
- 1.8.5.6.** Submitting an annual report, as prescribed under the Act each year by Head of the HR Department of the Company

1.8.6. A list of members of the Internal Committee constituted by the Company under this Policy, as on the date of publication of this Policy, along with their contact details is annexed herewith at Annexure 'A'. Any updates to the said index would be appropriately circulated and made known to all the Company Employees through notice, from time to time.

1.9. Redressal Mechanism

1.9.1. In compliance with the Act, if the Complainant warrants formal intervention, the Complainant needs to lodge a written Complaint, which shall be followed by a formal redressal mechanism as described in this Policy. In case of a verbal Complaint, the Complaint will be reduced in writing by the receiver of the Complaint and signatures of the Complainant will be obtained.

1.9.2. Lodging a Complaint:

1.9.2.1. The Complainant needs to submit a detailed Complaint, along with any documentary evidence available or names of witnesses, to any of the Committee members at the workplace.

1.9.2.2. A written Complaint of Sexual Harassment at the Workplace must be made to the Internal Committee, within a period of three (3) months from the date of the incident and in case of series of incidents, within a period of three (3) months from the date of last incident.

1.9.2.3. Where the Internal Committee / Local Committee is satisfied that the circumstances were such which prevented the Aggrieved Woman from filing a Complaint within the said period of 3 (three) months, the Internal Committee / Local Committee may extend the time limit for a period not beyond 3 (three) months, by recording the reasons in writing.

1.9.2.4. Where the Aggrieved Woman is unable to make a Complaint on account of her physical incapacity, a Complaint may be filed by:

1.9.2.4.1. Her relative or friend; or

1.9.2.4.2. Her co-worker; or **1.9.2.4.3.** Any person who has knowledge of the incident, with the written consent of the Aggrieved Woman; or

1.9.2.4.4. An officer of the National Commission for Women or State Commission for Women.

1.9.2.5. Where the Aggrieved Woman is unable to make a Complaint on account of her mental incapacity, a Complaint may be filed by:

1.9.2.5.1. Her relative or friend; or

1.9.2.5.2. A special educator; or

1.9.2.5.3. A qualified psychiatrist or psychologist; or

1.9.2.5.4. The guardian or authority under whose care she is receiving treatment or care; or

1.9.2.5.5. Any person who has knowledge jointly with her relative or friend or a special educator or qualified psychiatrist or psychologist, or guardian or authority under whose care she is receiving treatment or care.

1.9.2.6. A Complaint may be filed by a person who has knowledge of the incident, with the written consent of the Aggrieved Woman.

1.9.2.7. Where the Aggrieved Woman is unable to make a Complaint on account of her physical or mental incapacity or death, a Complaint may be filed by any person who is the legal heir of the Aggrieved Woman or any person who has knowledge of the incident, with the written consent of her legal heir(s).

1.9.2.8. A Complaint may also be made orally. If the Complaint is oral, a member of the Internal Committee, to whom the Complaint is made shall record the same in writing, in detail, and have the contents confirmed by the Complainant.

1.9.2.9. If the initial Complaint is made to a person other than a Committee member, upon receiving such a Complaint, it will be the responsibility of the Complaint receiver to report the same to the Committee immediately.

1.9.3. Receiving a Complaint (guidelines):

1.9.3.1. Dealing with incidents of harassment is not like any other type of dispute. Complainants may be embarrassed and distressed, and it requires tact and discretion while receiving the Complaint.

1.9.3.2. Cognizance of the following points must be taken by the receiver of the Complaint:

1.9.3.2.1. Complaints must be listened to, and the Complainant informed that the Company takes the concerns seriously. Complainant should be informed that these concerns will be reported to the appropriate Committee and follow up will be done speedily.

1.9.3.2.2. There should be no pre-judgment. Written notes must be taken while listening to the person. Complainant should be allowed to bring another person to the meeting if they wish. When taking accurate notes, Complainants own words, where possible, should be used. Clear description of the incident in simple and direct terms should be prepared and details must be confirmed with the Complainant.

1.9.3.2.3. All notes are kept strictly confidential. Complainant's agreement is taken to allow proceeding with the matter, which involves a formal investigation.

1.9.3.2.4. The Complainant is advised that although the process is confidential, the respondent needs to be informed and any witnesses and persons directly involved in the Complaint process will also learn of the Complainant's identity.

1.9.3.2.5. Care is taken to prevent any disadvantage to or victimization of either the Complainant or the respondent.

1.10. Procedure for Resolution, Settlement or Prosecution:

1.10.1. Conciliation:

1.10.1.1. The Internal Committee, may, before initiating an inquiry into a Complaint, at the request of the Aggrieved Woman, take steps to settle the matter between her and the Respondent through Conciliation. The conciliation shall not be on monetary settlement basis.

1.10.1.2. Where a settlement has been arrived at, the settlement terms shall be recorded in writing by the Internal Committee and forwarded to Head of the HR Department of the Company. Copies of the same shall be provided to the Aggrieved Woman and the Respondent.

1.10.1.3. Where a settlement has been arrived at, no further inquiry shall be conducted by the Internal Committee / Local Committee.

1.10.2. Inquiry Process:

1.10.2.1. The Internal Committee shall proceed to make inquiry in the manner mentioned below into the Complaint in the following cases:

1.10.2.1.1. No conciliation is requested by aggrieved woman.

1.10.2.1.2. Conciliation has not resulted in any settlement.

1.10.2.1.3. Complainant informs the Committee that any term or condition of the settlement arrived through conciliation, has not been complied with by respondent.

1.10.2.2. On receipt of Complaint the Internal Committee / Local Committee shall within a period of 7 (seven) days send a copy of the Complaint to the Respondent.

1.10.2.3. The Respondent shall, within a period of 10 (Ten) days from the date of receipt of Complaint from the Internal Committee, file his reply to the Complaint along with his list of documents, names, and addresses of witnesses.

1.10.2.4. The Internal Committee shall investigate the Complaint as promptly as possible, but no later than 90 working days from the date of receipt of the Complaint.

1.10.2.5. The Internal Committee shall follow principles of natural justice in all its proceedings and shall maintain confidentiality of the identity of the Aggrieved Woman / Complainant, the Respondent, and the witnesses, as also the contents of the Complaint.

1.10.2.6. A copy of the Complaint as recorded by the Internal Committee shall be given to the Respondent as well as the Complainant.

1.10.2.7. The Respondent shall be required to submit her/his response to the Complaint as well as to indicate whether the Respondent wishes the Internal Committee to examine any witnesses or furnish any evidence.

1.10.2.8. The Complainant shall also be required to indicate in writing whether the Complainant wishes the Internal Committee to examine any witnesses or furnish any additional evidence.

1.10.2.9. The Respondent shall not be permitted to compel the Complainant to be a witness, although the Complainant may choose to give evidence in relation to the alleged act of Sexual Harassment. In the event the Respondent wishes to question the Complainant, any such questions which the Respondent wishes to ask of the Complainant shall be submitted to the Internal Committee in writing, and it shall provide them to the Complainant, with such edits as the Internal Committee may deem necessary.

1.10.2.10. Upon receipt of the responses from the Respondent and the Complainant, the Internal Committee shall conduct a hearing at such venue or venues as are convenient to the Complainant, where both the Complainant and the Respondent shall be heard in person. The Internal Committee shall notify both the Respondent and Complainant (as well as the witnesses, if any) of the time and venue of each hearing. Any records of the proceedings of such or any other hearings or meetings of the Internal Committee shall be maintained strictly confidential.

1.10.2.11. In the event the Respondent is not present in person at a hearing of the Internal Committee, the hearing shall be adjourned to a date not later than three (3) days from the date of the original hearing, to be held at a time and venue convenient to the Complainant. The hearing shall be conducted on such adjourned date irrespective of whether the Respondent is present or not. Provided that nothing contained herein shall preclude the Internal Committee from adjourning such hearing for a longer period subject to recording its reasons for such adjournment in writing.

1.10.2.12. The Internal Committee shall be empowered to call upon such Employees of the Company who may have been witness to the incident(s) of Sexual Harassment and/or connected in any manner thereto.

1.10.2.13. The concerned / involved employees shall extend their fullest co-operation to the investigation and any failure to co-operate, or the giving of wrong or misleading information, or withholding information shall be a violation of this Policy and shall be dealt with appropriately by the Company. Such failure to co-operate or wilful or deliberate giving of wrong or misleading information or withholding of information may also constitute misconduct under applicable policies and codes of conduct, etc. of the Company.

1.10.2.14. The Company / Head of the HR Department of the Company shall provide necessary facilities to the Internal Committee for dealing with the Complaint and conducting the inquiry. It shall assist in securing the attendance of the Respondent and witnesses before the Internal Committee and shall make available such information to the Internal Committee as it may require having regard to the Complaint.

1.11. Inquiry Report and Recommendations:

1.11.1. Upon completion of the hearing, the Internal Committee, shall prepare its written report which shall include a summary of the proceedings, the evidence presented by the parties and the witnesses, and shall submit the same to the Company, within a period of 10 (ten) days from completion of the inquiry.

1.11.2. The said report shall further set out the conclusions of the Internal Committee on whether an offence of Sexual Harassment, or any other violation of this Policy, has been committed or occurred,

or whether the Complaint made by the Complainant is false or unproven, as also the reasons/ rationale of the Internal Committee for arriving at any such conclusion.

1.11.3. The said report shall further set out the Internal Committee's recommendations on the disciplinary action(s) to be taken against the Respondent or Complainant (as the case may be).

1.11.4. All members of the Internal Committee shall sign the said report. The said Report shall also be made available to the Complainant and Respondent.

1.11.5. During the pendency of the inquiry, on a written request made by Complainant, the Internal Committee may recommend to the Company to:

1.11.5.1. Transfer the Complainant or the Respondent to any other Workplace; or

1.11.5.2. Grant leave to the Complainant up to a period of three months; or

1.11.5.3. Restrain the Respondent from reporting on the work performance of the Complainant or writing her confidential report and assign the same to another officer.

1.11.5.4. Grant such other relief to the Aggrieved Woman as may be prescribed.

1.11.6. Note: the leave granted to the Aggrieved Woman under this clause shall be in addition to the leave she would be otherwise entitled to.

1.11.7. If the Internal Committee arrives at the conclusion that the allegation against the Respondent has not been proved, it will recommend to the Head of the HR Department of the Company, that no action is required to be taken in the matter.

1.11.8. Where the Internal Committee arrives at a conclusion that the allegations against the Respondent have been proved, it shall recommend the following respectively to the Head of the HR Department of the Company:

1.11.8.1. To take action against the Respondent for Sexual Harassment as an act of misconduct in accordance with the rules/regulations of the Company governing 'conduct and discipline' as applicable to the Respondent; and/or

1.11.8.2. To deduct such amounts from the salary or wages of the Respondent as may be considered appropriate to be paid to the Complainant or to her legal heirs, as the case may be, as per this Policy.

1.11.8.3. In addition to the above, the recommendations to the Head of the HR Department of the Company may also include disciplinary action, including one or more the following:

1.11.8.3.1. Written apology.

1.11.8.3.2. Warning.

1.11.8.3.3. Reprimand or Censure.

1.11.8.3.4. Withholding of promotion.

1.11.8.3.5. Withholding of pay rise or increments.

1.11.8.3.6. Termination of service of the Respondent.

1.11.9. The Head of the HR Department of the Company shall take action on the recommendations of the Internal Committee within a period of sixty (60) days.

1.11.10. If the Company is unable to deduct salary or wage of the Respondent for reasons such as his absence from duty or cessation of employment, the Company may direct the Respondent to pay the said amount of money to the Complainant directly.

1.11.11. If the Respondent fails to pay the amount referred to above, the Internal Committee may forward the order for recovery of the said amount as an arrear of land revenue to the District Officer, as per the provisions of the Act.

1.11.12. The Internal Committee, as the case maybe, shall keep in mind the following while deciding the amount to be paid to the Complainant:

1.11.12.1. The mental trauma, pain, suffering, and emotional distress caused to the Complainant.

1.11.12.2. The loss in the Complainant's career opportunity due to the incident of sexual harassment.

1.11.12.3. Medical expenses incurred by the Complainant.

1.11.12.4. The income and financial status of the Respondent.

1.11.12.5. Feasibility of such payments in lump sum or instalments.

1.12. Confidentiality:

1.12.1. All parties involved in any inquiry being conducted into a Complaint of Sexual Harassment must keep all aspects of the matter confidential, as per the provisions of the said Act.

1.12.2. For some offences if the Complainant desires, the Internal Committee / Local Committee will be under an obligation to report matters to the police or file an FIR, as per the provisions of the said Act.

1.13. Time Period:

1.13.1. The Internal Committee or the Local Committee, as the case maybe, shall complete the inquiry within a period of ninety (90) days from the date on which the Complaint is lodged.

1.14. Appeal:

1.14.1. It is important to understand that an act of Sexual Harassment may also be a criminal offence.

1.14.2. Any person aggrieved from the recommendations made by the Internal Committee / Local Committee or non-implementation of such recommendations, may prefer an appeal to the appellate authority as per the provisions of the Act, within a period of 90 (ninety) days of the recommendations.

1.15. Records:

1.15.1. A copy of the final report, notes of meetings and interviews, evidence and documentation relating to any action taken because of an investigation will be retained by the Internal Committee.

1.15.2. These records should not be placed on personnel files unless the Complaint results in disciplinary action against one or more of the parties involved in the Complaint, in which case any appropriate records may be placed on the disciplined Employee's file.

1.16. Malicious or False Complaints:

1.16.1. If an Aggrieved Woman or any person making a Complaint on behalf of the Aggrieved Woman is found by the Internal Committee or the Local Committee, as the case may be, to have raised a malicious or false Complaint against the Respondent, or has produced forged or misleading documents to prejudice the Respondent, the Internal Committee / Local Committee may recommend that the Complainant may be subject to appropriate disciplinary action, which may include termination of employment, engagement or relationship with the Company, as the case may be, in accordance with the said Act.

1.17. Miscellaneous:

1.17.1. The Company shall in consultation with the Internal Committee periodically review the provisions of this Policy and its implementation (taking into account practical problems, if any, faced by the Internal Committee and/or the Company in the implementation of this Policy).

1.17.2. The Company reserves the right to amend the provisions of this Policy, from time to time, as it deems fit, subject to applicable law.

1.17.3. This Policy will not prejudice any rights available under the Protection of Human Rights Act, 1993, The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 or any other legislation, applicable in force.

1.18 ANNEXURE 'A'

Index of members of the internal complaints committee as of April 2025

Sr. No.	Designation / Position	Details of ICC members
1	Presiding Officer	Ms. Lituja Mishra Sr. VP – HR Email ID: lituja.mishra@apmosys.com
2	External Member (from any non-government organization)	Ms. Lalitha Radha Krishan Email ID: lalituid28@gmail.com
3	Member (amongst the Employees of the Company)	Mr. Parag Sawant Sr. VP – HR Email ID: parag.sawant@apmosys.com
4	Member (amongst the Employees of the Company)	Ms. Jayashree Pradhan Head – SBU Email ID: jayashree.pradhan@apmosys.com
5	Member (amongst the Employees of the Company)	Ms. Richa Bhargava HR Consultant Email ID: richa.bhargava@apmosys.com

1.19. ANNEXURE 'B' – Some Examples of Sexual Harassment at Workplace

1.19.1. Visual Conduct:

1.19.1.1. Leering

1.19.1.2. Making sexual gestures

1.19.1.3. Displaying sexually suggestive or explicit objects, pictures (still or moving), cartoons, graffiti or posters in any manner, including as part of e-mail transmissions

1.19.2. Verbal Conduct:

1.19.2.1. Whistling and catcalls

1.19.2.2. Foul or obscene language

1.19.2.3. Making or using derogatory comments which are sexual in nature

1.19.2.4. Explicit discussions about sexual activities/behaviours

1.19.2.5. Comments about a woman's physical attributes

1.19.2.6. Spreading rumours about another person's sexual activities/conduct and/or partners

1.19.2.7. Jokes which contain offensive, obscene, or lascivious content

1.19.2.8. Sexual advances / Sexual propositions

1.19.2.9. Sexual innuendo or double entendre

1.19.3. Written Conduct:

1.19.3.1. Suggestive, obscene, or propositioning letters, notes, greeting cards or invitations, including but not limited to those transmitted via e-mail or any other means

1.19.3.2. Displaying pictures (still or moving), cartoons, graffiti or posters in writing, including but not limited to e-mail

1.19.4. Physical Conduct:

1.19.4.1. Unwelcome touching

1.19.4.2. Sexual Assault

1.19.4.3. Kissing / Hugging / Grabbing

1.19.4.4. Coercing another person to participate in sexual intercourse or other sexual behaviours

1.19.4.5. Impeding or blocking movements

1.19.4.6. Any physical interference with normal work or movement

1.19.4.7. Sexual gestures

2. Anti-Bullying Policy

2.1. Introduction

2.1.1. The Company wishes to provide a stimulating and supportive working environment which will enable its staff to fulfil their personal potential and creativity.

2.1.2. Such an environment cannot exist where any employee is subjected to harassment, intimidation, aggression, or coercion.

2.1.3. The Company wishes to promote a workplace which is free from harassment and bullying and to ensure that all employees and contractors are treated with dignity and respect.

2.2. Scope

2.2.1. This policy applies to all active employees, Consultants, and contractors of ApMoSys.

2.3. The Company's Position On Bullying and Harassment

2.3.1. All employees, consultants and contractors have a duty not to bully or harass each other or to help anyone else to do so.

2.3.2. Allegations of bullying and harassment will be treated seriously.

2.3.3. The Company will not permit bullying or harassment in the workplace or at work-related events outside of the workplace, whatever is the seniority of the perpetrator and whether the conduct is a one-off act or repeated course of conduct, and whether done purposefully or not.

2.3.4. The Company will not tolerate retaliation against, or victimisation of any person involved in the bringing of a complaint of harassment or bullying.

2.3.5. All employees and contractors should also be aware that if any employee is found bullying or harassing, he / she could be liable to compensate the victim.

2.3.6. In some circumstances the treatment may amount to a crime punishable by a fine or imprisonment.

2.3.7. The Company will take appropriate action if any of our members of staff or contractors are bullied or harassed by our customers, visitors or suppliers, or another agent.

2.3.8. If, after investigation, it is concluded that one has harassed or bullied another employee or contractor, then he / she may be subject to disciplinary action, up to and including dismissal.

2.3.9. Retaliation or victimisation will also constitute a disciplinary offence, which may in appropriate circumstances lead to dismissal.

2.3.10. Investigations will be carried out promptly, sensitively and, as far as possible, confidentially.

2.3.11. Employees, consultants, and contractors who make allegations of bullying or harassment in good faith will not be treated less favourably / differently as a result.

2.3.12. False accusations of harassment or bullying can have a serious effect on innocent individuals. We all have a responsibility not to make allegations.

2.3.13. False allegations made in bad faith will be dealt with under the Company's Disciplinary Policy.

2.4. Type of Treatment Leading To Bullying Or Harassment

2.4.1. Harassment is unwanted conduct which violates a person's dignity or creates an intimidating, hostile, degrading, humiliating or offensive environment. It may be on the grounds of sex, marital status, race, disability, religion or beliefs, sexual orientation, age, or gender reassignment. For the purposes of this Policy this list should be considered non-exhaustive, and harassment or bullying on any grounds will not be allowed by the Company.

2.4.2. Harassment may be persistent or an isolated incident, obvious or subtle, face-to-face, or indirect. It may even be through unequal or unfair application of monitoring systems.

2.4.3. Behaviour that is considered bullying by one person may be considered firm management by another.

2.4.4. Bullying does not include appropriate criticism of an employee's behaviour or proper performance management.

2.4.5. It is important to recognise that conduct which one person may find acceptable; another may find totally unacceptable. All members of staff, consultants and contractors must, therefore, treat their colleagues with respect and appropriate sensitivity.

2.5. Examples of Behaviour Which May Constitute Harassment Or Bullying

2.5.1. Spreading malicious rumours or insulting someone (particularly on the grounds of age, disability, gender re-assignment, marriage, civil partnership, pregnancy, maternity, race, religion, belief, sex or sexual orientation).

2.5.2. Professional or social exclusion.

2.5.3. Calculated undermining of an employee's competence, for example through a consistently unreasonable or unfair workload, overbearing supervision, or unnecessary circulation of critical memoranda.

2.5.4. Physical abuse such as hitting, pushing, or jostling.

2.5.5. Verbal abuse, threats, derogatory name-calling, ridicule, insults and offensive or embarrassing jokes or pranks related to age, disability, gender re-assignment, marriage, civil partnership, pregnancy, maternity, race, religion, belief, sex, or sexual orientation.

2.5.6. Sending, showing, or discussing offensive emails, texts, or visual images.

2.5.7. Overbearing supervision or other misuse of power or position.

2.5.8. Rifling through, hiding, or damaging personal property.

2.5.9. Practical jokes, initiation ceremonies or inappropriate birthday rituals.

2.5.10. Making threats or comments about job security without foundation.

2.5.11. Deliberately undermining a competent worker by overloading and constant criticism.

2.5.12. Subjecting a person to humiliation or ridicule, belittling their efforts, often in front of others.

2.5.13. Derogatory graffiti/insignia or display of derogatory or offensive material.

2.5.14. Inciting others to commit any of the above or showing approval for such acts.

2.6. Unlawful Grounds of Bullying And Harassment

2.6.1. The Company wishes to reiterate that it will not tolerate any instance of harassment or bullying regardless of the grounds. This Policy will equally apply to work related events even if they occur away from the normal workplace.

2.6.2. The Company also wishes to emphasize that the policy applies to conduct on the grounds of a particular characteristic, whether or not the person concerned has that characteristic. For example, to make rude comments to a person about them having a disabled sibling would be harassment on the grounds of disability.

2.6.3. It also applies to a perception that a person has a characteristic, whether or not that person has it. The following are expressly unlawful grounds by which a person may experience harassment or bullying:

2.6.3.1. Gender

2.6.3.1.1. Harassment or bullying on the grounds of a person's gender, pregnancy, maternity leave etc. This can apply even where the complainant was not the employee to whom the harassment was directed.

2.6.3.2. Marital Status

2.6.3.2.1. Harassment or bullying on the grounds of a person's marital status or civil partnership.

2.6.3.3. Gender Reassignment

2.6.3.3.1. Harassment or bullying on the grounds that a person either has an intention to undergo gender reassignment, is currently undergoing gender reassignment or has already undergone gender reassignment.

2.6.3.4. Sexual Harassment

2.6.3.4.1. This is distinguished from harassment on the grounds of sex, as it is physical, visual, verbal, or non-verbal conduct that is sexual in nature.

2.6.3.5. Race

2.6.3.5.1. Harassment or bullying on the grounds of race, colour, ethnicity, or nationality.

2.6.3.6. Disability

2.6.3.6.1. Bullying or harassment on the grounds of a person's disability.

2.6.3.7. Sexual Orientation

2.6.3.7.1. Bullying or harassment on the grounds of a person's sexual orientation, applying equally to "same sex" orientation, "opposite sex" orientation and "both sexes" orientation.

2.6.3.8. Religion or Belief

2.6.3.8.1. Harassment or bullying on the grounds of a person's religion or beliefs.

2.6.3.9. Age

2.6.3.9.1. Harassment on the grounds of a person's age, applying equally to all people regardless of age.

2.6.3.10. Grievance

2.6.3.10.1. Bullying or harassment as a consequence of a person raising a complaint.

2.7. Procedure for Complaints

2.7.1. Any employee who feels that they have been subjected to bullying or harassment by any other member of staff should raise the matter as soon as reasonably practicable. There are two possible avenues for raising concerns, informal or formal.

2.7.2. Informal Procedure

2.7.2.1. One must speak up at the time when he / she feels harassed or bullied. It is important to be direct and to state explicitly that one is being harassed and that the behaviour is unacceptable. One can also discuss the matter with another colleague or manager and ask them to speak to the harasser on one's behalf. In either case, one can approach the HR Team for advice and support. Such requests for help will be treated confidentially.

2.7.2.2. Alternatively, if one is unable to confront the harasser directly, one could write a letter to the harasser which clearly identifies the offending behaviour with a request to stop it immediately. One must sign and date any such letter and ensure that a copy is kept for any possible future formal complaint. It is also advisable to keep an 'incident diary' of any offending behaviour.

2.7.2.3. If the above approach does not work or if one does not want to try to resolve the situation in this way, or if one is being bullied by one's own manager, he / she must raise the issue with the HR Team. The HR can try to resolve the situation informally by telling the alleged perpetrator(s), without prejudging the matter, that there has been a complaint that their behaviour is having an adverse effect on a fellow employee; that such behaviour is contrary to Company policy; that the continuation of such behaviour could amount to a serious disciplinary offence. It may be possible for the HR Team to have this conversation with the alleged perpetrator without revealing the complainant's name, they will also stress that the conversation is confidential.

2.7.2.4. If one's complaint is resolved informally, the alleged perpetrator(s) will not be subject to disciplinary actions. However, in exceptional circumstances (such as a serious allegation of sexual harassment or in cases where the problem has happened before) the Company may decide to investigate further and take more formal action notwithstanding that the matter is settled informally.

2.7.2.5. Where the informal procedure does not help to resolve complaints, a formal complaint about harassment or bullying can be raised.

2.7.3. Formal Procedure

2.7.3.1. Any employee who feels that they have been subjected to bullying or harassment may at any time decide to deal with the issue through formal procedures, regardless of whether informal steps have been taken or not.

2.7.3.2. If the informal procedure is unsuccessful or inappropriate, employees can make a formal written complaint about the bullying or harassment to their line manager (or HR Team). A formal complaint may ultimately lead to disciplinary action against the perpetrator(s).

2.7.3.3. The Company will first investigate the complaint. The complainant will need to co-operate with the investigation and provide the following details (if not already provided): the name of the alleged perpetrator(s), the nature of the harassment or bullying, the dates and times the harassment or bullying occurred, the names of any witnesses and any action taken by the employee to resolve the matter informally. The alleged perpetrator(s) would normally need to be told the complainant's name and the details of the complaint for the issue to be investigated properly. However, the investigation will be carried out as confidentially and sensitively as possible.

2.7.3.4. Where the complainant and the alleged perpetrator(s) work in proximity to each other, it is inappropriate for them to continue to do so whilst the complaint is being investigated and during any consequent disciplinary proceedings. If so, we may decide to:

2.7.3.4.1. Transfer one of them; or

2.7.3.4.2. Transfer both; or

2.7.3.4.3. Send one employee home on full pay; or

2.7.3.4.4. Send both of the employee's home on full pay.

2.7.3.5. After the investigation, the investigating committee will meet the complainant to consider the complaint and the findings of the investigation.

2.7.3.6. After the meeting (and normally within five working days), the committee will write to the complainant to inform about the decision and to notify the right of appeal in case the complainant is dissatisfied with the outcome.

2.8. APPEALS PROCEDURE

2.8.1. If the complainant is dissatisfied with the outcome of the formal procedure, he / she can put the appeal in writing explaining the reasons about the dissatisfaction about the decision.

2.8.2. An appeal can be submitted to the HR team, within five working days of receiving written confirmation of the decision.

2.8.3. The complainant will normally be invited to attend a meeting to consider it. This meeting will be with the Managing Director, or his nominated deputy.

2.8.4. This meeting will normally take place within 5 working days of receipt of the written appeal. Any delays in either of these processes will be discussed and agreed with complainant.

2.8.5. The appeal outcome will be conveyed to the complainant in writing normally no later than 10 days of the appeal meeting.

2.8.6. The decision of the appeal is final and concludes the internal process.

2.8.7. The process within this policy is consistent with that of the Company's Grievance Policy, thus this is the only internal process in relation to claims of bullying or harassment.

2.9. Consequences of Breach

2.9.1. Harassment is a disciplinary offence and will be dealt with according to the Company's Disciplinary Policy. Bullying, harassment, victimisation, or discrimination may constitute gross misconduct, punishable by dismissal without notice.

2.9.2. Employees should bear in mind that harassment or bullying may also constitute a criminal offence punishable by a fine and / or imprisonment or civil liability before a Court or an Employment Tribunal.

2.10. Responsibilities of Employees and Managers

2.10.1. All employees are responsible for their own behaviour and should ensure that they always comply with this Policy.

2.10.2. All managers are responsible for implementing this Policy and bringing it to the attention of employees.

2.10.3. Any complaints under this Policy brought to the attention of a manager must be dealt with promptly, confidentially, fairly, and consistently.

2.11. Confidentiality

2.11.1. The Company will treat any complaint received under this Policy with confidentiality.

2.11.2. All employees involved with an investigation are required to respect the need for confidentiality.

2.11.3. Any breaches in confidentiality will be subject to disciplinary action.

2.12. Record Keeping

2.12.1. Any records kept in relation to the procedural elements of this policy will be treated as confidential and retained under data protection principles.

2.13. Conclusion

2.13.1. ApMoSys is committed to fostering a safe, respectful, and inclusive workplace environment for all employees, free from harassment, bullying, and any form of misconduct.

2.13.2. All employees, managers, and associated personnel are expected to uphold the standards set forth in this policy and contribute to a culture of mutual respect and accountability.

2.13.3. The Company will regularly review and update this policy to ensure its continued effectiveness and alignment with applicable laws and best practices.

2.13.4. By adhering to this policy, we collectively promote a positive and productive workplace where everyone can thrive professionally and personally.

Authorized Signatory

Version 6



Head – HR